

Court No. - 40

Case :- WRIT - C No. - 16876 of 2024

Petitioner :- Shivmahraj

Respondent :- State Of Up And 6 Others

Counsel for Petitioner :- Rakesh Kumar Mishra,Vijay Kumar Ojha

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf,J.

Hon'ble Manjive Shukla,J.

1. Heard Shri V.K. Ojha, counsel appearing on behalf of the petitioner, the Standing Counsel appearing on behalf of respondent Nos.1 and 2 and Shri Narendra Kumar Tiwari, counsel appearing on behalf of the respondent nos.3 to 7.

2. At present, parties are at variance to the exact location of new power line being laid by respondent Nos.3 to 7 for the benefit of the residents of the village.

3. According to the petitioner, connection of the residents of the village is being energized from the power line provided to the petitioner i.e. from the pole standing on his private property. The petitioner has opposed to the new electric pole being erected over his property and has also opposed to electric line connection being provided to the residents of the village from the pole standing over his land.

4. On the other hand, the residents of the village would contend that the present petitioner is obstructing a public work. The residents of the village would submit that electricity connection is urgently required by them and that the public work may not be stalled.

5. Having heard learned counsel for the parties, we find that in terms of Clause 4.5 (d) of the Electricity Supply Code 2005, any person over whose land electricity supply line is being laid, has a right to object to the same. Then Clause 3 of the Works of Licensees Rules, 2006 allows the District Magistrate or Commissioner of Police or other authorized officer to deal with such situation and provide proper resolution, such that neither the rights of a citizen over his land may be violated nor any public

work may be unduly stalled.

6. In face of the objection raised by the petitioner, we provide that subject to the petitioner filing appropriate application under Clause 3 of the Works of Licensees Rules, 2006 before respondent No.2, supported by his personal affidavit annexing thereto all relevant documents and photographs on which he may seek to rely, the said respondent may pass appropriate order on the same after hearing all necessary parties including respondent Nos.3 to 7.

7. Till such decision is made, parties to maintain status quo as on date.

8. Counsel on behalf of the respondent Nos.1 and 2 submits that hearing is being granted to other persons having similar grievance on July 4, 2024 and the petitioner shall also be heard on that date.

9. In light of the same, the petitioner is directed to appear before the District Magistrate on July 4, 2024 along with all relevant materials and he shall also be heard on that date.

10. Accordingly, the present writ petition stands disposed of.

Order Date :- 1.7.2024

Rakesh

(Manjive Shukla, J.) (Shekhar B. Saraf, J.)